

1. Line 223 through 229:

223 **59-14-902** Authorization for remote retail sale of a cigar or pipe tobacco.

224 (1) A retailer may make a remote retail sale of a cigar or pipe tobacco in this state if the
 225 retailer:

226 (a) ~~It~~ **subject to Section 59-14-903,** ~~it~~ complies with the licensing ~~it~~ [~~{~~ ~~}~~] **and** ~~it~~
 226a bonding ~~it~~ [~~{~~ ~~and taxation~~ ~~}~~] ~~it~~ requirements of this part;

227 (b) subject to Subsection (3), collects and remits the sales and use taxes due under
 228 Chapter 12, Sales and Use Tax Act;

229 (c) reports to the commission, on a quarterly basis after remote retail sales of cigars or

2. Line 230 through 241:

230 pipe tobacco begin:

231 (i) the number of remote retail sales of cigars or pipe tobacco; and

232 (ii) the gross sales amount;

233 (d) ~~It~~ [~~{~~ ~~collects and remits the tax imposed by this part if the retailer meets the~~ ~~}~~
 233a ~~requirements~~ ~~}~~] ~~it~~

234 ~~It~~ [~~{~~ ~~of Subsection 59-12-107(2)(c)~~ ~~}~~] **subject to Section 59-14-904, collects and**
 234a **remits the tax imposed by this part** ~~it~~ ;

235 (e) complies with the age and access requirements for cigars or pipe tobacco described
 236 in Section 10-8-47 and Title 76, Chapter 9, Part 11, Cigarettes, Tobacco, and
 237 Psychotoxic Chemical Solvents; ~~It~~ [~~{~~ ~~and~~ ~~}~~] ~~it~~

238 (f) uses an age verification system ~~It~~ ; **and**

238a **(g) requires an individual 21 years old or older to sign for delivery and to take**
 238b **possession of the cigar or pipe tobacco** ~~it~~ .

239 (2) A remote seller may not:

240 (a) make a remote retail sale of any product containing nicotine or tobacco that is not a
 241 cigar or pipe tobacco; or

3. Line 259 through 265:

259 (b) the address of the facility from which the retailer will make a remote retail sale of a
 260 cigar or pipe tobacco;

261 (c) the retailer's federal identification number;

262 (d) proof that the retailer uses an age verification system $\hat{H} \rightarrow$ and requires an individual
262a 21 years old or older to sign for delivery and to take possession of the cigar or pipe
262b tobacco $\leftarrow \hat{H}$;
263 (e) proof of receipt of a sales tax license, if applicable; and
264 (f) any other information the commission requires to implement this chapter.
265 (2) A license described in Subsection (1) is:

4. *Line 308 through 315:*

308 identified in the actual cost list.
309 (b) A remote retail sale of a cigar or pipe tobacco that is subject to the tax imposed by
310 this section is not subject to the tax imposed by Section 59-14-302.
311 (3) $\hat{H} \rightarrow$ [{ A remote seller that meets the requirements of Subsection 59-12-107(2)(c) }
311a shall collect }] $\leftarrow \hat{H}$
312 $\hat{H} \rightarrow$ [{ the tax imposed by Subsection (1) from a consumer at the time of a remote retail }
312a { sale of }] $\leftarrow \hat{H}$
313 $\hat{H} \rightarrow$ [{ a cigar or pipe tobacco. }] If a tax is due under Subsection (2), a remote seller
313a that meets the requirements of Subsection 59-12-107(2) shall collect the tax from a
313b consumer at the time of a remote retail sale of a cigar or pipe tobacco. $\leftarrow \hat{H}$
314 (4) The commission shall deposit the revenue generated by the tax imposed under this
315 section into the General Fund.